

TRADING STANDARDS REPRESENTATION**Tear, Jayne**

Subject: FW: New Premises Licence Background Bars Ltd t/a Peckham Palais 1a Rye Lane, London SE15 5EW Ref:887620

Attachments: Alcohol 2023.pdf; FINAL_c25-poster-enga-1_WSTA.pdf; Southwark Refusals Register 2023.pdf; Saying no 2023.pdf; Proof of age cards 2022.pdf; Age verification policy 2022.pdf; Best practice guide 2022.pdf

From: Forrest, Yemisi <Yemisi.Forrest@Southwark.gov.uk>

Sent: Monday, December 15, 2025 8:45 AM

To: [REDACTED]

Cc: Regen, Licensing <Licensing.Regan@southwark.gov.uk>; Jerrom, Charlie <Charlie.Jerrom@southwark.gov.uk>;

Tear, Jayne <Jayne.Tear@SOUTHWARK.GOV.UK>

Subject: New Premises Licence Background Bars Ltd t/a Peckham Palais 1a Rye Lane, London SE15 5EW Ref:887620

Trading Standards as a responsible authority are in receipt of new premise licence application from Background Bars Limited t/a Peckham Palais in respect of a premises at 1a Rye Lane London SE15 5EW. Trading Standards as a responsible authority are making representations in respect of this application under all the licensing objectives, but primarily the protection of children from harm.

In the general description this is:-

"Multi-floor venue providing regulated entertainment, on sales of alcohol, and late night refreshment use of which authorised by grant of planning permission in 2024. Robust management includes SIA security, CCTV to police evidential standard (31 day retention), Challenge 25, a comprehensive drugs/search policy, a written dispersal policy, and capped/supervised external smoking areas".

The opening hours are to be:-

Monday	00:00 to 05:00
Monday	19:00 to 00:00
Tuesday	00:00 to 01:00
Tuesday	17:00 to 00:00
Wednesday	00:00 to 01:00
Wednesday	17:00 to 00:00
Thursday	00:00 to 02:00
Thursday	17:00 to 00:00
Friday	00:00 to 03:00
Friday	17:00 to 00:00
Saturday	00:00 to 06:00
Saturday	15:00 to 00:00
Sunday	00:00 to 06:00
Sunday	15:00 to 00:00

The opening hours for alcohol sales are to be (on sales only):-

Monday	00:00 to 04:30
Monday	19:00 to 00:00

Tuesday	00:00 to 00:30
Tuesday	17:00 to 00:00
Wednesday	00:00 to 00:30
Wednesday	17:00 to 00:00
Thursday	00:00 to 01:30
Thursday	17:00 to 00:00
Friday	00:00 to 02:30
Friday	17:00 to 00:00
Saturday	00:00 to 05:30
Saturday	15:00 to 00:00
Sunday	00:00 to 05:30
Sunday	15:00 to 00:00

Late Night Refreshment (indoors)

Monday	00:00 to 04:30
Monday	23:00 to 00:00
Tuesday	00:00 to 00:30
Tuesday	23:00 to 00:00
Wednesday	00:00 to 00:30
Wednesday	23:00 to 00:00
Thursday	00:00 to 01:30
Thursday	23:00 to 00:00
Friday	00:00 to 02:30
Friday	23:00 to 00:00
Saturday	00:00 to 05:00
Saturday	23:00 to 00:00
Sunday	00:00 to 05:00
Sunday	23:00 to 00:00

Films (Indoors)

Monday	00:00 to 05:00
Monday	19:00 to 00:00
Tuesday	00:00 to 01:00
Tuesday	17:00 to 00:00
Wednesday	00:00 to 01:00
Wednesday	17:00 to 00:00
Thursday	00:00 to 02:00
Thursday	17:00 to 00:00
Friday	00:00 to 03:00
Friday	17:00 to 00:00
Saturday	00:00 to 06:00
Saturday	15:00 to 00:00
Sunday	00:00 to 06:00
Sunday	15:00 to 00:00

Live Music – Indoors

Monday	00:00 to 05:00
Monday	19:00 to 00:00
Tuesday	00:00 to 01:00

Tuesday	17:00 to 00:00
Wednesday	00:00 to 01:00
Wednesday	17:00 to 00:00
Thursday	00:00 to 02:00
Thursday	17:00 to 00:00
Friday	00:00 to 03:00
Friday	17:00 to 00:00
Saturday	00:00 to 06:00
Saturday	15:00 to 00:00
Sunday	00:00 to 06:00
Sunday	15:00 to 00:00

Performance of dance – Indoors

Monday	00:00 to 05:00
Monday	19:00 to 00:00
Tuesday	00:00 to 01:00
Tuesday	17:00 to 00:00
Wednesday	00:00 to 01:00
Wednesday	17:00 to 00:00
Thursday	00:00 to 02:00
Thursday	17:00 to 00:00
Friday	00:00 to 03:00
Friday	17:00 to 00:00
Saturday	00:00 to 06:00
Saturday	15:00 to 00:00
Sunday	00:00 to 06:00
Sunday	15:00 to 00:00

Plays

Monday	00:00 to 05:00
Monday	19:00 to 00:00
Tuesday	00:00 to 01:00
Tuesday	17:00 to 00:00
Wednesday	00:00 to 01:00
Wednesday	17:00 to 00:00
Thursday	00:00 to 02:00
Thursday	17:00 to 00:00
Friday	00:00 to 03:00
Friday	17:00 to 00:00
Saturday	00:00 to 06:00
Saturday	15:00 to 00:00
Sunday	00:00 to 06:00
Sunday	15:00 to 00:00

Recorded Music – Indoors

Monday	00:00 to 05:00
Monday	19:00 to 00:00
Tuesday	00:00 to 01:00
Tuesday	17:00 to 00:00

Wednesday	00:00 to 01:00
Wednesday	17:00 to 00:00
Thursday	00:00 to 02:00
Thursday	17:00 to 00:00
Friday	00:00 to 03:00
Friday	17:00 to 00:00
Saturday	00:00 to 06:00
Saturday	15:00 to 00:00
Sunday	00:00 to 06:00
Sunday	15:00 to 00:00

It is noted that the application states the following in relation to part M (a) General All four licensing objectives

“Challenge 25 policy; acceptable ID: passport, photocard driving licence, PASS hologram cards; refusals log; frontline training and refreshers”.

That in relation to part M (e) it states

“Challenge 25; no unaccompanied under 18s; children only allowed at private events with a risk assessment; robust welfare and safeguarding training for staff; soft drink alternatives and free water available”.

The draft conditions state

21. “A Challenge 25 age-verification policy shall be operated. Staff shall receive refresher training every 6 months”.

The Operating Schedule/Management Plan states

3.7 “All staff members will undertake mandatory training on induction and refresher courses every six months covering the following, inter alia:

“Age awareness and verification training”

3.8 Training records for all staff will be maintained on the dedicated Night Group training portal and will be available to inspect on site and remotely

4.12 No person under the age of 18 will be admitted to the premises. Children accompanied by a responsible adult may be allowed to attend private functions with the prior written consent of the General Manager.

4.15 A “Challenge 25” policy will be in place, which will be clearly signposted throughout the premises.

Statement of Case – Promotion of the Licensing Objectives states

1B (d) Protection of Children from Harm - via Challenge 25, safeguarding training, welfare supervision, and a prohibition on unaccompanied minors.

Regarding point 4.12 above from the management plan/operating schedule trading standards would like to see more clarity

A suggestion of wording could be

“No children under 18 will be admitted to the premises except for the purpose of prearranged private events the parent or responsible adult having obtained the written consent of the general manager prior to the event. During these private events children under 18 must be accompanied by a parent or responsible adult.

Or the applicant can provide their own wording.

It is good that there is reference to an age verification scheme. However, trading standards propose the following conditions as a way of consolidating and tidying up matters in order to comply with the licensing objective the protection of children from harm.

1.That a challenge 25 scheme shall be maintained requiring that staff selling or delivering alcohol request that any customer who looks under 25 years old, and who is attempting to purchase or take receipt of alcohol, provides valid photographic identification proving that the customer is at least 18 years old. Valid photographic identification is composed of a photo driving licence, passport, UK armed services photo ID card, any Proof of Age Standards Scheme (PASS) accredited card (such as the Proof of Age London (PAL) card) or any age verification card accredited by the Secretary of State

2.That all staff involved in the sale of alcohol shall be trained in the prevention of sales of alcohol to underage persons (including the prevention of ‘proxy sales’) and the challenge 25 scheme in operation at the premises. Details of such training, including the printed name(s) of the trainee(s) and the date(s) that the training was given, shall be recorded in the staff training logs at the premises and shall be made immediately available for inspection at the premises to authorised officers on request.

3.That clearly legible signs shall be prominently displayed where they can easily be seen and read by customers stating to the effect that a challenge 25 policy is in operation at the premises, that customers may be asked to provide proof of age and stating what the acceptable forms of proof of age are. Such signage shall be displayed at all entrances and points of sale The signage shall be kept free from obstructions at all times.

4.That a register of refused sales of alcohol shall be maintained in order to demonstrate effective operation of the challenge 25 policy. The register shall be used to record details of all refused sales of alcohol. The register shall be kept / be accessible at the premises at all times. If the refusals register is a paper document then it shall be clearly and legibly marked on the front cover as a register of refused alcohol sales, with the address of the premises and the name of the licence holder. The register shall be made immediately available for inspection at the premises to authorised officers on request.

I attach electronic documents of training materials and refusals register which can be used to meet the above conditions in terms of staff training and use of a refusal register. This effectively saves the business the cost of paying a consultant to undertake such activities. There is no reason why a person in the business who holds a personal license cannot undertake such training for staff and this can form part of a defence for the business should a member of staff supply alcohol to a minor.

If you are happy to accept these conditions then trading standards, as a responsible authority, will be happy to lift the representations made in respect of the application.

Hard copies of the above documents can be provided on request.

Kind regards

Yemisi Forrest
Pronouns: She/Her
Principal Enforcement Officer – Trading Standards
Lead Officer - Scams and Rogue Trading
Southwark Council | Environment, Sustainability & Leisure (ES&L) | Regulatory Services
T: 020 7525 5739

Postal Address:
Trading Standards Unit | 3rd Floor, Hub 1 | PO Box 64529 | London | SE1P 5LX

Visitor Address:
160 Tooley Street | London | SE1 2QH

W: southwark.gov.uk

Kind regards

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Principal Enforcement Officer – Trading Standards
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160 Tooley Street | London | SE1 2QH

W: southwark.gov.uk



ENVIRONMENTAL PROTECTION REPRESENTATION

Tear, Jayne

Subject: FW: Application for a new premises licence under the Licensing Act 2003 for Peckham Palais, 1a Rye Lane, London SE15 5EW our ref A58344

Attachments: 24_AP_3199-
BASEMENT__FIRST_FLOOR_AREAS_-_CONDITION_DISCHARGE_REPORT-3945971.pdf; 13361.ATN01.PAN.2.04032024.TMA (002).pdf

From: Binya, Raymond <Raymond.Binya@southwark.gov.uk>

Sent: Wednesday, December 17, 2025 1:33 PM

To: Regen, Licensing <Licensing.Regen@southwark.gov.uk>

Cc: [REDACTED]

Subject: Application for a new premises licence under the Licensing Act 2003 for Peckham Palais, 1a Rye Lane, London SE15 5EW our ref A58344

Dear Licencing Team,

RE: Full variation of premises licence to be granted under the Licensing Act 2003.

Application reference number: 887620

Address: Peckham Palais

1a Rye Lane

London

SE15 5EW

The application seeks a new premises licence for a multi-floor venue providing regulated entertainment, on-sales of alcohol, and late-night refreshment. Planning permission was granted in 2024, and the applicant proposes robust management measures including SIA security, CCTV, Challenge 25, dispersal policy, and capped external smoking areas.

Licensable activities and Proposed hours

- Recorded Music (Indoors): Monday–Sunday (varied start times), generally until 00:00, with extended hours for other entertainment activities up to 03:00–06:00 on Fridays and Saturdays.
- Late Night Refreshment: Daily from 23:00 until closing.
- Supply of Alcohol (On Premises): Daily until 00:00, with extended hours on weekends.
- Opening Hours: Daily until 00:00, with extended hours on Fridays and Saturdays.

Background

EPT was extensively involved during the planning stage, where conditions relating to building insulation and queuing were agreed and incorporated into the planning decision notice (LBS Reg. No.: 23/AP/2878, issued 01/05/2024). While proposed hours exceed policy for premises in the CIP area, EPT does not object to the use of the premises for licensed entertainment subject to strict noise control measures, including a calibrated sound limiter based on agreed noise limits outlined in the October 2024 acoustic report:

Area	Sound Pressure Level (dB)	
	63Hz	125Hz
Basement Main Space	120	113
First Floor Main Space	94	95

EPT raises concerns regarding departures from what was assessed and agreed during planning:

Capacity: The Operating Management Plan (Section 4.4) states a total capacity of 1,052 patrons: Basement (468), First Floor (270), Second Floor (254), Third Floor (60). This exceeds the planning stage assessment of 890 patrons (Basement 450, First Floor 220, Second Floor 220) and introduces licensed entertainment on the third floor, which was originally intended as studio space and not acoustically assessed. This change increases potential noise breakout risk, particularly from upper floors.

Dispersal: Sections 6.11–6.20 of the Operating Management Plan address staggered dispersal but omit the agreed requirement for dispersal by floors to control ground-level congestion. It was agreed that the first floor should close 1–2 hours before the basement to reduce cumulative impact during late-night egress.

On this basis, EPT would like to make a representation under the Licensing Act 2003, specifically in relation to the likely effect of granting the licence on the promotion of the Prevention of Public Nuisance licensing objective the above grounds/concerns,

EPT Recommendation

EPT does not object to granting the licence provided the following additional conditions are imposed alongside those in the applicant's draft licence conditions:

1. A multiband sound limiting device shall be installed at the premises and will be maintained in full working order and be in use at all times the premises is in operation.
 - i. All amplification equipment, entertainment devices and amplified instruments shall be routed through the sound limiting device and shall be calibrated so that the amplified sound at the premises noise emitted from premises does not cause a statutory or other nuisance. Only management staff will have access to the sound limiting device and will be able to demonstrate that it is in use at the immediate request of responsible authority officers.
 - ii. A qualified professional acoustic consultant shall be employed to calibrate the sound limiter at the premises and to arrange the layout, installation and orientation of the speakers at the premises so that sound transmission is minimised and complies to the limit of 105 dB for Basement Main Space and 90 dB for First Floor Main Space.

- iii. A signed and dated report from the acoustic consultant regarding the calibration of the sound limiter and any amendments to the speaker installation at the premises report shall be kept at the premises and provided to responsible authority officers immediately on request.
- iv. Once the sound limiter has been calibrated, its control settings shall not be altered at any time, except for when altered by a qualified professional acoustic consultant or the premises' sound engineer.
- v. Any additional amplification equipment imported on to the premises by third parties shall be connected to and use the installed sound limited device/circuit.

2. The maximum occupancy of the premises shall not exceed 950 persons at any one time, with the following limits per floor: Basement – 450 persons; First Floor – 220 persons; Second Floor – 220 persons; Third Floor – 60 persons. The premises licence holder must ensure these limits are actively monitored and enforced at all times using a reliable counting system and maintain records for inspection by authorised officers.

3. The premises shall operate a graduated dispersal policy to minimise congestion and noise at ground level during closing times. The First Floor must close and be cleared of patrons at least one hour before the Basement closes, and the Second Floor must close and be cleared at least 30 minutes before the Basement closes. This policy shall be documented, communicated to staff, and actively managed by security personnel, with records of dispersal timings kept for inspection.

Kind Regards

Raymond Binya MSc REnvH MCIEH MIEEnvSc

Principal Environmental Protection Officer

Environmental Protection Team | Environment, Sustainability and Leisure

Southwark Council

T: 0207 525 4809

W: www.southwark.gov.uk



airTEXT - a free subscription service: daily information on pollution and more, by text, email, voicemail, or mobile phone app; download from: <http://www.airtext.info/>

Southwark Website - information on what you can do to improve air quality.

See: <https://www.southwark.gov.uk/planning-environment-and-building-control/environment/air-quality>

Please consider the environment - do you really need to print this email?

NRMM LEZ standards are changing!

From January 2025 standards will be EU Stage IV across Greater London.

Details are on the GLA website: [Non-Road Mobile Machinery \(NRMM\) | London City Hall](#)

The licensing Unit
Floor 3
160 Tooley Street
London
SE1 2QH

Metropolitan Police Service
Licensing Office
Southwark Police station
323 Borough High Street
London
SE1 1JL
Tel: 02072326756
Email: Southwarklicensing@met.police.uk
Your ref: 2498408
Our ref: MD/25/2169
19/12/2025

Re: Peckham Palais, 1a Rye Lane, Peckham, SE15 5EW

Dear Sir/Madam,

Police are in possession of a new premises application from the above premise. The premise is a multi-floor venue comprising a live music venue, bar, restaurant, and nightclub. The premises wishes to provide regulated entertainment, on sales of alcohol, and late night refreshments.

The Hours requested are exceed those stated in the Southwark Council Licensing policy which are closing time for night clubs Monday to Thursday is 01:00hrs and for Friday and Saturday 03:00hrs and for Sunday 00:00hrs. The hours requested on this application are below.

Opening hours

- Monday: 19:00–05:00
- Tuesday: 17:00–01:00
- Wednesday: 17:00–01:00
- Thursday: 17:00–02:00
- Friday: 17:00–03:00
- Saturday: 15:00–06:00
- Sunday: 15:00–06:00

Timings of plays

- Monday: 19:00–05:00
- Tuesday: 17:00–01:00
- Wednesday: 17:00–01:00
- Thursday: 17:00–02:00
- Friday: 17:00–03:00
- Saturday: 15:00–06:00

- Sunday: 15:00–06:00

Timings for plays

- Monday: 19:00–05:00
- Tuesday: 17:00–01:00
- Wednesday: 17:00–01:00
- Thursday: 17:00–02:00
- Friday: 17:00–03:00
- Saturday: 15:00–06:00
- Sunday: 15:00–06:00

Timings for films

- Monday: 19:00–05:00
- Tuesday: 17:00–01:00
- Wednesday: 17:00–01:00
- Thursday: 17:00–02:00
- Friday: 17:00–03:00
- Saturday: 15:00–06:00
- Sunday: 15:00–06:00

Live music

- Monday: 19:00–05:00
- Tuesday: 17:00–01:00
- Wednesday: 17:00–01:00
- Thursday: 17:00–02:00
- Friday: 17:00–03:00
- Saturday: 15:00–06:00
- Sunday: 15:00–06:00

Recorded music

- Monday: 19:00–05:00
- Tuesday: 17:00–01:00
- Wednesday: 17:00–01:00
- Thursday: 17:00–02:00
- Friday: 17:00–03:00
- Saturday: 15:00–06:00
- Sunday: 15:00–06:00

Performance of dance

- Monday: 19:00–05:00
- Tuesday: 17:00–01:00
- Wednesday: 17:00–01:00
- Thursday: 17:00–02:00
- Friday: 17:00–03:00
- Saturday: 15:00–06:00
- Sunday: 15:00–06:00

Late night refreshments

- Monday: 23:00–04:30
- Tuesday: 23:00–00:30
- Wednesday: 23:00–00:30
- Thursday: 23:00–01:30
- Friday: 23:00–02:30
- Saturday: 23:00–05:00
- Sunday: 23:00–05:00

Supply of alcohol

- Monday 19:00–04:30
- Tuesday: 23:00–00:30
- Wednesday: 17:00–00:30
- Thursday: 17:00–01:30
- Friday: 17:00–02:30
- Saturday: 15:00–05:30
- Sunday: 15:00–05:30

The premise is situated in Peckham Major Town Centre and is in a Cumulative Impact Area (CIZ) as designated by Southwark Council. The High Court approval of Cumulative impact policies came in Westminster City Council v Middlesex Crown Court. In brief, it stated ‘A licence could be refused on the sole ground that the area was already saturated with licensed premises’.

I note that the hours on the operating management plan are different to those on the application police would like to the applicant to clarify the hours they wish to request. Due to the premise being located in a CIZ with residential properties close by, police believe that the weekday hours should be brought in line with Southwark policy (Monday to Thursday closing time of 01:00hrs) and we ask the applicant to reconsider.

The applicant has provided numerous control measures and a comprehensive operating schedule to address the licensing objectives which the police welcome. Police however do believe that some conditions need to be reworded to be enforceable and there are additional conditions that would be beneficial to the premise license to address the large scale of the venue and the location known for its antisocial behaviour.

1. The premises shall operate strictly in accordance with the Operating Management Plan (November 2025), the Operating Schedule (Version 4), and the final licensing plans (November 2025). Once the premise licence has been granted, these documents shall be deemed final and shall not be altered, amended or replaced without prior written approval of the licensing authority in consultation with the police. Copies of all such documents shall be kept at the premise and made immediately available to Police and council officers upon request. The conditions and timings attached to the premise licence shall reflect and be consistent with the measures, controls and procedures set out in these documents.
2. That a digital CCTV system shall be installed at the premises, shall be maintained in full working order and shall be continually recording at all times that the premises are in use. The CCTV system must be capable of capturing a clear facial image of every person who enters the premises in all lighting conditions. The CCTV system shall be correctly time and date stamped at all times. The CCTV system shall cover all interior and exterior areas of the premises, including the frontage of the premises, and shall collect clear high definition footage. All CCTV footage shall be kept for a period of thirty one (31) days and shall be made immediately available to Police and council officers.
3. At least one member of staff should be on duty the premises is open or contactable via the telephone, that is trained in the use of the CCTV and able to view and download images to a removable device on request of police or council officers.
4. That all CCTV footage shall be kept for a period of thirty one (31) days and shall be made immediately available to Police and authorised council officers.
5. That clearly legible signage shall be prominently displayed where it can easily be seen and read by customers advising to the effect that CCTV is in operation at the premises. The signage shall be kept free from obstructions at all times.
6. That a dispersal policy shall be devised and enforced by the venue at all times the venue is open. The policy shall assist with patrons leaving the premises in an orderly and safe manner. A copy of the dispersal policy shall be accessible at the premises at all times that the premises are in operation. The policy should include (but not necessarily be limited to) the following;
 - I. Details as to how customer / staff egress at the premises shall be managed to minimise causing nuisance.
 - II. Details of public transport in the vicinity and how customers will be advised in respect of it.
 - III. Details of the management of taxis to and from the premises.
 - IV. Details of the management of any 'winding down' period at the premises.
 - V. Details of the use of security and stewarding in respect of managing customer dispersal from the premises.
 - VI. Details of road safety in respect of customers leaving the premises.
 - VII. Details of the management of ejections from the premises.
 - VIII. Details as to how any physical altercations at the premises are to be managed
 - IX. Details of how refuse / waste in the local vicinity arising through the operation of the premises will be cleared up (e.g. flyer clean up, post event clean up).

All relevant staff employed at the premises shall be trained in the latest version of the dispersal policy. Details of such training, including the printed name(s) of the trainee(s) and the date(s) that the training was given, shall be recorded in the staff training logs at the premises. If the dispersal policy is a paper document then the signature of the trainees shall also be included. The dispersal policy shall be made immediately available to responsible authority officers on request.

7. That an incident log shall be kept at the premises to record details of any of the following occurrences at the premises:

- I. Instances of anti-social or disorderly behaviour
- II. Calls to the police or other emergency services
- III. Any complaints received
- IV. Ejections of people from the premises
- V. Visits to the premises by the local authority or emergency services
- VI. Any malfunction in respect of the CCTV system
- VII. All crimes reported by customers, or observed by staff
- VIII. Any other relevant incidents

The incident log shall record the time, date, location in the premises and description of each incident, details of any action taken in respect of the incident and the printed name of the person reporting the incident and. The incident log shall be available / be accessible at the premises at all times that the premises are in use, and shall be made immediately available to authorised council officers on request. Details of incidents shall be recorded contemporaneously. If the incident log is a paper hardcopy then the signature of the person reporting the incident in the log shall also be included. All relevant staff employed at the premises shall be trained in the use of the incident log. Details of such training, including the printed name(s) of the trainee(s) and the date(s) that the training was given, shall be recorded in the staff training logs at the premises. That all Digital records of training and/or logs shall be made immediately available to Police and authorised officers.

8. The venue shall support “Ask for Angela” or another similar safety initiative Posters relating to Ask for Angela, or any other similar safety initiative in place, shall be displayed at the premises (including the toilets). Such posters shall be kept free from obstructions at all times. All staff shall be trained in “Ask Angela”, or a similar safety initiative, and a record of this training shall be kept on the premises and made available for inspection immediately to Police and authorised council officers upon request.

9. The premises must have a welfare and vulnerability policy. The policy shall include but not be limited to the following:

- A clear policy on how to prevent drinks spiking
- How customers alleging such are cared for and reported to police.

All new staff must receive this training before starting their role and all staff must have refresher training every 12 months. All training must be recorded and these records must be available on immediate request by police and council officers upon request.

10. That clearly legible signage shall be prominently displayed where it can easily be seen and read by customers, at all exits from the premises and in any external areas, requesting to the effect that customers leave the premises and locale in a quiet and orderly manner with respect to local residents. Such signage shall be kept free from obstructions at all times.

11. When SIA door supervisors are employed, the following conditions shall apply:
 - The premises licence holder or DPS (or nominated deputy) shall ensure that the following details for each door supervisor, are contemporaneously entered into a bound or electronic register kept for that purpose:
 - Full name,
 - SIA Certificate number and or badge number, or registration number of any accreditation scheme recognised by the Licensing Authority (including expiry date of that registration or accreditation),
 - The time they began their duty
 - The time they completed their duty.
12. When employed the SIA registered door supervisors shall be equipped with recording body worn video for all events. The body worn video shall be made available upon request to Police and authorised council officers on request. That any instances of body worn cameras not functioning, not turned on or missing shall be recorded by the Manager/Staff in a security log book for reference with a reason for failure. This log is to be made immediately available for inspection to Police and authorised council officers.
13. There shall be no dedicated dance floor on the Third Floor
14. That no beers, lagers, ciders or similar alcohols with an alcohol by volume (ABV) of over 6.5% shall be sold or supplied at the premises, save for beers, lagers, ciders or similar alcohols with an ABV of up to 8% that shall only be served in containers with a maximum volume of 250ml.
15. No beers, lagers, or ciders in 2 litre or above containers shall be sold at the premises.
16. That signs shall be displayed in the entrance foyer to the premises indicating that the premises operates a zero tolerance to drugs and state 'NO SEARCH, NO ENTRY, MANAGEMENT RESERVE THE RIGHT TO REFUSE ENTRY
17. The premises shall only use polycarbonate drinking vessels after 2200hrs on ground, first, second and third floor.
18. Polycarbonate drinking vessels will be used at all times on the Basement floor
19. That a drugs drop box, which must be secure and have a tamper proof entrance, shall be fixed to the wall in the entrance foyer to the premises, and an agreement must be established with the local police over the emptying and collection of any drugs deposited in the box
20. That the premises shall not be hired out to external promoters. All events taking place at the premises shall either be organised, managed, overseen and promoted by the licensee or DPS
21. Where the Premises Licence Holder (PLH) hires out its Premises to any 3rd parties / members of the public for a promoted or private event, the PLH must ensure that the hirer completes a written venue hire agreement (VHA), supplied by the PLH. The VHA shall include the full name and address of the hirer, copy of valid photo identification of the hirer (kept on file in accordance with data protection requirements), the hirer's signature and the date that the VHA has been signed. The VHA shall include all of the PLH's terms of hire (including compliance with the conditions of this licence). Such agreements shall be kept on file for 6 months from the date of the event and be made immediately available to Police and authorised council officers on request.

- 22. No service or sale of alcohol to any persons who appears drunk or inebriated.
- 23. The premises shall not sell whole bottles of spirits, wines or similar alcohols
- 24. There shall be no new entry to the premises after 0300, other than premises staff, performing artists and those who leave the premises for the purpose of smoking a cigarette, those persons who leave and re-enter the premises shall be subject to a further search on the re-entry to the premises. In relation to entry of premises staff and performing artists after 0300 a log will be kept of those persons which will be made available to the Police and authorized officers upon request.

Police object to the granting of this licence in its current format as police believe there are additional control measures that that would be beneficial to this particular premise license that is situated in a Cumulative Impact Area. Police welcome the opportunity to open dialogue with applicant to progress this application.

Yours faithfully,

Name Surname

PC SADIE DUNNE

LICENSING OFFICER

METROPOLITAN POLICE - SOUTHWARK

LICENSING REPRESENTATION

To: Licensing Unit	From: Wesley McArthur wesley.mcarthur@southwark.gov.uk 020 7525 5767 (on behalf of the Licensing Unit in its role as a responsible authority)	Date: 29/12/2025
Subject:	Representation	
Act:	The Licensing Act 2003 (the Act)	
Premises:	Peckham Palais, 1A Rye Lane, Peckham, London, SE15 5EW	
Application number:	887620	
Location ID:	178661	Ward: Rye Lane

We object to the grant of an application for a premises licence, submitted by Background Bars Limited under the Licensing Act 2003 (the Act), in respect of the premises known as Peckham Palais, 1A Rye Lane, Peckham, London, SE15 5EW.

1. The application

The application is to allow for the provision of the following licensable activities and opening hours:

Films, live music, recorded music, performances of dance:

Monday: 19:00 – 01:00
Tuesday: 17:00 – 01:00
Wednesday: 17:00 – 02:00
Thursday: 17:00 – 03:00
Friday: 17:00 – 06:00
Saturday: 15:00 – 06:00
Sunday: 15:00 – 05:00

Late night refreshment:

Monday: 19:00 – 00:30
Tuesday: 17:00 – 00:30
Wednesday: 17:00 – 01:30
Thursday: 17:00 – 02:30
Friday: 17:00 – 05:30
Saturday: 15:00 – 05:30
Sunday: 15:00 – 04:30

The sale of alcohol to be consumed on the premises:

Monday: 19:00 – 00:30
Tuesday: 17:00 – 00:30
Wednesday: 17:00 – 01:30
Thursday: 17:00 – 02:30
Friday: 17:00 – 05:30
Saturday: 15:00 – 05:30
Sunday: 15:00 – 04:30

Opening times:

Monday: 19:00 – 01:00
Tuesday: 17:00 – 01:00
Wednesday: 17:00 – 02:00
Thursday: 17:00 – 03:00
Friday: 17:00 – 06:00
Saturday: 15:00 – 06:00
Sunday: 15:00 – 05:00

In the application the premises are described as follows:

- *“Multifloor venue providing regulated entertainment, on sales of alcohol, and late night refreshment use of which authorised by grant of planning permission in 2024.”*

2. Extant licence

It is noted that the applicant (Background Bars Limited) already holds a premises licence (number 886531) that allows for the provision of similar licensable activities and operating hours as follows:

Plays, films, live music, recorded music, performance of dance, anything similar to live or recorded music, and alcohol to be consumed on the premises

Monday: 19:00 – 23:00
Tuesday: 19:00 – 23:00
Wednesday: 19:00 – 23:00
Thursday: 19:00 – 23:00
Friday: 19:00 – 05:00
Saturday: 19:00 – 05:00
Sunday: 19:00 – 00:00

Opening hours

Monday: 19:00 – 23:00
Tuesday: 19:00 – 23:00
Wednesday: 19:00 – 23:00
Thursday: 19:00 – 23:00
Friday: 19:00 – 06:00
Saturday: 19:00 – 06:00
Sunday: 19:00 – 00:00

3. The Statement of Licensing Police (SoLP)

According to sections 6 & 7 of this council’s statement of licensing policy 2021 – 2026 (the SoLP), the premises fall within Peckham Cumulative Impact Area (CIA) and Peckham Major Town Centre area.

A copy of the SoLP is available via:

[Our licensing policies | Southwark Council](#)

4. Our objection

Our objection relates to the promotion of all of the licensing objectives and is based on the criteria set out in ‘4a’ and ‘4b’ below.

4a. Cumulative Impact

The premises fall within the Peckham Cumulative Impact Area (CIA).

Paragraph 131 of the SoLP 2021 – 2026 states –

- *“Applications made within specified Cumulative Impact Areas (CIAs) are deemed likely to add to the potential impact the policy is intended to avoid. There is therefore an automatic presumption that such applications will be refused, however each application will be judged on its own merits.”*

Paragraph 156 of the SoLP stipulates regarding the Peckham CIA that (emphasis added)-

- *“The classes of premises to which the policy applies is defined as follows – **night clubs**; pubs and **bars**; off-licences, grocers, supermarkets, convenience stores; and similar premises.*

As per paragraph 156 of the SoLP, the council has found that certain types of premises are likely to increase the negative cumulative impact in the Peckham CIA of licensed premises in that area. We are in agreement with this stance.

Paragraph 132 of the statement of licensing policy states that –

- *“It is normally the case that a representation citing a relevant CIA will have to be determined at a Licensing Sub-Committee hearing.”*

We further note that section 136 of the statement of licensing policy states –

- *“...it is for the Applicant to demonstrate that the application will not, if granted, further contribute to the negative local cumulative impact on any one or more of the licensing objectives.”*

Further, we contend that it is possible that granting the application could further contribute to the negative cumulative impact of licensed premises in the Peckham CIA.

We also refer to **R (on the application of Westminster City Council) -v- Middlesex Crown Court [2002] EWHC 1104** in which HHJ Baker adjudicated.

- *“Notwithstanding the applicant being a fit and proper person and the premises would be well run a licence could be refused on the sole ground that the area was already saturated with licence premises....and the cumulative effect of the existing premises was impacting adversely on the area to an unacceptable level.”*

We note that whilst there is an extant premises licence issued in respect of the premises and held by the applicant, there is an increase in operating hours on each day of the week and we say that this could likely increase the negative cumulative impact of licensed premises in the Peckham CIA.

We also note that the applicant has significantly referred to the Peckham Cumulative Impact Area in the application, and this is welcomed.

4b. Conditions

The applicant has proposed various measures to address the licensing objectives. We welcome these measures, but do not feel that they sufficiently address the licensing objectives and we say that amended and / or further conditions are required.

Further to the above, we contend that the conditions proposed need clarification to ensure that they are precise, practicable, enforceable and unambiguous.

Paragraph 1.16 (Licence conditions – general principles) of the Guidance to the Licensing Act 2003 issued by the Secretary of State under section 182 of the Licensing Act 2003 states that conditions –

- *“must be precise and enforceable;”*
- *“must be unambiguous and clear in what they intend to achieve;”*

We say that to ensure that the proposed variation does not add to the negative cumulative impact of licensed premises in the locale, the following conditions are included in any premises licence issued subsequent to this application:

a) General

1. That all relevant staff shall be trained in their responsibilities under the Licensing Act 2003, the promotion of the licensing objectives and the terms and conditions of this licence. Records pertaining to such training (‘the staff training logs’) shall be kept at the premises, shall be updated every 6 months and shall be made immediately available to authorised officers on request. The training logs shall include the trainee’s name (in block capitals), the trainer’s name (in block capitals), the date(s) of training and a declaration that the training has been received and understood by the trainee. If the staff training logs are a paper hardcopy then the signature of the trainee, the signature of the trainer shall be included.
2. The premises licence holder shall host bi-monthly resident liaison meetings in the first year of operation, and quarterly meetings thereafter. Minutes of such meetings shall be kept at the premises and be made immediately available to authorised officers on request.

<<The above condition relating to resident meetings is an amendment of condition 19 offered in the applicant’s schedule of conditions.>>

3. That there shall be an identified duty manager and security supervisor on site at all times that the premises are in operation. They shall sign in at the beginning of their shifts in a staff log. The log shall include their printed names and the times & dates that they sign in. The log shall be kept at the premises and be made available to authorised officers on request. (‘Identified’ in this condition means known to all staff.)

<<The above condition relating to a duty manager should replace condition 20 offered in the applicant’s schedule of conditions.>>

b) The prevention of crime and disorder

4. That clearly legible signage shall be prominently displayed where it can easily be seen and read by customers in the toilets advising to the effect that the taking of illegal drugs will not be tolerated at the premises. These notices shall be kept free from obstructions at all times.
5. That door supervisors will be employed as follows:
 - a) That a minimum of twelve (12) SIA registered door supervisors will be employed at the premises at all times after 22:00 hours, on any day that the premises will shut at 00:00 (midnight) or after, at any time that the premises are being used for DJ or music led events, and / or at any time when major sporting events are to be shown at the premises, during the operation of the premises, with a

minimum of ten (10) still being present during customer egress once the basement area and external areas have closed.

- b) That additional SIA registered door supervisors will be employed to maintain a ratio of at least 1 SIA registered door supervisor per 100 customers (or part thereof).
- c) The door supervisors will be employed to control entry to the premises, to deal with the searching / scanning of customers, to deal with any anti-social or disorderly behaviour at the premises, to de-escalate confrontations, to assist with emergency escape from the premises, to deal with the ejection of people from the premises, to assist management in liaising with the police regarding instances of crime and to assist with ensuring that the premises' dispersal policy is adhered to.
- d) The door supervisors shall be at the premises prior to the premises opening to the public and shall remain at the premises until all patrons have vacated the premises, and until at least 30 minutes after the premises close.
- e) The door supervisors shall be easily identifiable.
- f) That when SIA security staff are deployed at the premises they shall be supplied with, and shall use, metal detectors (either metal detection arches or handheld metal detectors) to search all customer entries or re-entries to the premises. Prior to the premises opening the metal detectors shall be checked to ensure that they are in full working order. A log of such checks shall be kept at the premises and shall include the name of the person who undertook the check, the outcome of the check, and the time and date of the check. The log shall be made immediately available to authorised officers on request.
- g) That the requirement for the deployment of extra SIA registered door supervisors at the premises shall be risk assessed if and when required. Copies of any such risk assessments shall be kept at the premises for 6 months from the date of assessment and be provided to authorised officers immediately on request.
- h) A minimum of one (1) SIA licensed door supervisors shall be employed to monitor the external areas of the premises, when SIA license door supervisors are deployed as above.

<<The above condition relating to the provision of SIA registered security should replace condition 3 offered in the applicant's schedule of conditions.>>

- 6. That an entry policy will be devised and maintained at the premises. A copy of the entry policy shall be kept at the premises with the premises licence and shall be made immediately available for inspection to authorised officers on request. The entry policy shall cover (but not necessarily be limited to):
 - a) Safe customer entry to the premises,
 - b) If / when applicable searching / scanning of attendees,
 - c) The barring of customer entry to the premises for any reason,
 - d) Restricted items (e.g. weapons / drugs or any other items restricted by the licensee),
 - e) Pre-opening safety checks of the premises,
 - f) Dealing with overcrowding and / or crowd surges
 - g) Dealing with suspect packages

All security, stewarding, managerial, supervisory or other relevant staff shall be trained in the implementation of the latest version of the entry policy and detail of such training shall be recorded in the staff training logs at the premises.

- 7. A computer-based identification scanning system shall be installed at the entrance to the premises and shall be used whenever SIA registered door supervisors are required to be deployed at the premises. Any patrons who remain on the premises having entered prior to 22:00 hours shall have their photographic identification checked and scanned onto the identification scanning system. The system shall be able to recognise

valid forms of photographic identification, shall be able to recognise counterfeit identification, shall be able to store data regarding barred individuals and shall be always maintained in full working order when the premises are in use. Should any fault in the system occur, then the matter shall be logged in the incident log at the premises immediately, and steps shall be taken to remedy the fault immediately. Any steps taken to remedy the fault (e.g. contacting a relevant engineer) shall also be recorded in the incident log immediately. Should the system fail at any time then the premises must undertake a strict challenge 25 policy regarding customer entry to the premises. Access to the identification system shall be provided to authorised officers on request.

8. Any software updates relating to the computer-based identification scanning system will be implemented as soon as possible to ensure that the system is always fit for purpose. All relevant staff will be able to show what version of the software is in use at the immediate request of authorised officers.
9. All security, stewarding, managerial, supervisory or any other staff who will at any time have control over customer entry to the premises, shall be trained in the full and correct use of the computer-based identification scanning system. Details of such training, including the printed name(s) of the trainee(s) and the date(s) that the training was given, shall be recorded in the staff training logs in either a written or electronic format at the premises and, when the premises are open, shall be made immediately available for inspection at the premises to authorised officers on request.
10. All re-entries to the premises will be subject to a further search prior to being allowed to re-enter the premises.

<<The above conditions relating a computer-based identification scanning system should replace condition 5 offered in the applicant's schedule of conditions.>>

C. Public Safety

11. That the maximum number of people permitted on the entire premises at any one time (the 'accommodation limit') is 1052 people (excluding staff).
 - a) The individual accommodation limit of the basement shall be 468 people (excluding staff).
 - b) The individual accommodation limit of the 1st (first) floor shall be 270 people (excluding staff).
 - c) The individual accommodation limit of the 2nd (second) floor shall be 254 people (excluding staff).
 - d) The individual accommodation limit of the 3rd (third) floor shall be 60 people (excluding staff).
 - e) The accommodation limits shall be known by all security, stewarding, managerial or supervisory staff and any other relevant staff, and shall not be exceeded at any time.
12. That security, stewarding, managerial or supervisory staff and any other relevant staff shall be on duty to ensure that the individual accommodation limits of each floor are not exceeded, and that local overcrowding does not take place and / or is dissipated as soon as practicably possible.
13. That counting devices shall be used by the staff who are controlling customer entry to the premises to keep an accurate count of the number of people at the premises at any time and to ensure that the premises' accommodation limit is never exceeded. Staff using the counting devices should be able to determine the number of people at the premises immediately at the request of authorised officers.

<<The above conditions relating the premises' 'accommodation limit' should replace condition 2 offered in the applicant's schedule of conditions.>>

14. That a first aid / welfare room for the treatment, recovery, rest or ambulance waiting of injured / intoxicated or other vulnerable persons shall be provided. Only the first aider (or any other first aid staff), assisting staff, injured persons or council & emergency service personnel shall be permitted into the first aid room when it is in use.
15. That the first aid / welfare room shall be in operation at all times after 21:00 hours or at any time that the premises are being used for DJ or music led events, and / or at any time when major sporting events are to be shown at the premises.

<<The above conditions relating to a first aid / welfare room should replace condition 22 offered in the applicant's schedule of conditions.>>

16. That there shall be an identified first aider on site at all times that the premises are in operation. They shall sign in at the beginning of their shift in a staff log. The log shall include their printed name and the time & date that they sign in. The log shall be kept at the premises and be made available to council and / or police officers on request. ('Identified' in this condition means known to all staff.)
17. That illuminated emergency escape route and emergency exit signage that can remain illuminated independent of the mains power supply ('emergency lighting') shall be installed at the premises, be maintained in full working order, be fully operational at all times that the premises are in use and shall be maintained free from obstruction at all times.
18. That lighting shall be installed, maintained in full working order, and be in use in any external areas of the premises where customers are permitted at all times that the premises are in operation. The lighting shall be installed such that visibility allows customers (and staff) to safely navigate, and gain access and egress to and from the external areas. Such lighting shall be installed so that it does not cause nuisance to any nearby residences.

C. The prevention of public nuisance

19. That if and when required, staff shall interact with customers to ensure that customers behave in the premises' external area in a quiet and orderly manner and also leave the premises and locale in a quiet and orderly manner. Customers deemed by staff to be engaging in anti-social behaviour may be asked to leave the premises, if appropriate. Staff shall be trained in this and details of such training, including the printed name(s) of the trainee(s) and the date(s) that the training was given, shall be recorded in the staff training logs at the premises and shall be made immediately available to authorised officers on request.
20. That a sound limiting device (or similar equipment) shall be installed at the premises, be maintained in full working order and be in use at all times that the premises are in operation under this licence. All amplification equipment, entertainment devices and amplified instruments shall be routed through the sound limiting device (or similar equipment) which shall be calibrated so that the sound level of amplified sound at the premises does not cause a statutory or public nuisance and does not exceed any limits set by the premises' acoustic engineer. Only the licensee, premises manager, sound engineering staff, or other person(s) nominated in writing by the licensee, shall have access to the sound limiting device (or similar equipment) and shall be able to demonstrate that it is in use at the immediate request of authorised officers.

21. That a log / report with details of the calibration of any sound limiting device (or similar equipment), including who calibrated the device, what time it was calibrated, any internal and external sound level measurements taken, whether external measurements were taken with windows and doors open and any other relevant technical details shall be kept at the premises and signed off by the person who set the device. The log shall be made immediately available to authorised officers on request.
22. That only the licensee, premises' manager, sound engineering staff, or other person(s) nominated in writing by the licensee, shall have access to any amplification equipment and the sound limiting device (or similar equipment) at the premises, and only such staff shall be permitted to change any control settings on said equipment.
23. That a log of people permitted access to the amplification equipment and the sound limiting device (or similar equipment) at the premises shall be kept at the premises and provided to authorised officers immediately on request.

<<The above conditions relating to a sound limiting device and amplification equipment should replace condition 6 offered in the applicant's schedule of conditions.>>

24. That clearly legible signage stating a dedicated contact telephone number for the premises shall be prominently displayed where it can easily be seen and read by passers-by, and stated on the premises' website. The signage shall state to the effect that the phone number shown can be used to contact the premises in respect of any complaints regarding the operation of the premises. If the telephone number relates to a mobile phone, then the duty manager / supervisor on duty shall have the mobile phone on their person at all times. Such signage shall be kept free from obstructions at all times.

<<The above condition relating to a contact number should replace condition 18 offered in the applicant's schedule of conditions.>>

E. The protection of children from harm:

25. That a child protection / vulnerable persons policy will be devised and maintained at the premises. A copy of the child protection / vulnerable persons policy shall be kept at the premises with the premises licence and shall be made immediately available for inspection to authorised officers on request. All staff shall be trained in the implementation of the latest version of the child protection policy and details of such training including the printed name of the trainee and the date of the training, shall be recorded in the staff training logs at the premises.

I am open to discuss any of the above proposed conditions, however if the applicant accepts all of the conditions then I will withdraw this representation.

Yours sincerely,

Wesley McArthur
Principal Enforcement Officer